

		Defendants move to strike from the complaint allegations they contend are conclusory (see Compl., ¶¶ 5, 19, 25, 40) and irrelevant (id., ¶¶ 2-4, 16-19, 24-25, 32, 34), as well as punitive damages allegations (id., ¶¶ 21-27, 36, 37, 43) and the prayer for punitive damages (id., prayer ¶ d). All the purported conclusory and irrelevant allegations are matters for a jury to determine when deciding negligence. The court will not strike them from the complaint. The complaint also sufficiently alleges facts as to each defendant to support a prayer for punitive damages on grounds defendants demonstrated a conscious disregard of the safety of others (as to Raymond) and knowingly entrusted a street-legal golf cart to Raymond despite knowing he lacked a valid driver's license and the golf cart lacked safety features (as to Blake). Defendants are ORDERED to file an answer within 5 days. Trial is scheduled for 2/18/2028 at 11:30 AM. Jury fees must be paid within 5 days. CMC scheduled for 9/3/2026 is VACATED. Clerk to give notice.
9	Singleton vs. Santa Ana Unified School District 30-2026-01544048-CU-WM-CJC	Demurrer to Petition for Writ of Mandate Defendant Santa Ana Unified School District's unopposed demurrer to the petition for writ of mandate and complaint for declaratory and injunctive relief is OVERRULED, in part, and SUSTAINED in part, without leave to amend. <u>Second Cause of Action: Declaratory Relief</u> Defendant argues the second cause of action for declaratory relief fails as a matter of law pursuant to the California Supreme Court's decision in <i>City of Gilroy v. Superior Court</i> (2026) 19 Cal.5th 38 (<i>Gilroy</i>). Defendant is incorrect. <i>Gilroy</i> addressed whether the California Public Records Act ("CPRA") authorizes the trial court to grant declaratory relief for violations of the CPRA where it was undisputed an agency had disclosed all existing records that were responsive to a records request and not exempt from disclosure. (<i>Gilroy, supra</i>, 19 Cal.5th at p. 45.) In <i>Gilroy</i>, the Supreme Court "conclude[d] from the statutory text, considered in light of the CPRA's purpose of increasing freedom of information, that declaratory relief under the CPRA is available in at least some

		circumstances in which all existing responsive, nonexempt records have been disclosed in response to a records request . . . At a minimum, declaratory relief is available under the CPRA where the declaration would resolve an ongoing dispute regarding the parties' rights and obligations in a manner that has some likelihood of affecting future requests for public records or future conduct relating to such requests." (<i>Id.</i> at pp. 45-46 [cleaned up].) Based on its interpretation of the CPRA, the court held the first two of the trial court's declarations, which concerned the defendant's responses to public records requests involving police bodycam footage, addressed contested issues regarding the defendant's handling of records requests that were sufficiently likely to recur. The court explained in these circumstances, declaratory relief was appropriate to help guide the parties' future conduct and inform their rights and responsibilities under the CPRA. (<i>Gilroy, supra</i>, 19 Cal.5th at p. 54.) The court declined to address the third declaration, which declared the city's response to one request was untimely, and whether it would have supported an action for declaratory relief if raised in isolation. (<i>Id.</i> at p. 56.) The court also expressly declined to consider whether declaratory relief is available in response to merely technical violations of the CPRA such as a delayed initial response because, "while future cases may present that question, . . . [the court] need not interpret the statute so expansively in order to resolve the case before [it]." (<i>Gilroy, supra</i>, 19 Cal.5th at p. 62.) The court confirmed its holding was narrower: "that the statute allows for declaratory relief at least when it functions to address an ongoing dispute and guide the parties' future conduct with respect to the parties' rights and responsibilities under the CPRA". (<i>Ibid.</i>) Here, the second cause of action seeks five declarations, at least one of which concerns an ongoing dispute likely to recur. Plaintiff seeks a declaration Defendant "violated and continues to violate the CPRA by . . . delaying, withholding, or failing to produce nonexempt records responsive to the requests at issue[]" (Petition, ¶ 73) and prays for a declaratory judgment that Defendant violated the CPRA by "unlawfully withholding records through unreasonable delay and incomplete production[]" (Petition, ¶ 82(d)). This declaration is based partly on Plaintiff's allegations Defendant's practice of routing public records requests to outside legal counsel rather
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		than processing them through ordinary administrative channels resulting in delay. (See Petition, ¶¶ 38-47.) The dispute therefore concerns a continuing practice that will affect future requests. Accordingly, Plaintiff has stated a cause of action for declaratory relief under the CPRA. Because a general demurrer does not lie to only portion of a cause of action, the court declines to address Defendant's arguments regarding the remaining declarations sought in the second cause of action. (See <i>Daniels v. Select Portfolio Servicing, Inc.</i> (2016) 246 Cal.App.4th 1150, 1167.) The demurrer to the second cause of action is OVERRULED. <u>Third Cause of Action: Injunctive Relief</u> Under California law, injunctive relief is a remedy, not a cause of action. (<i>City of South Pasadena v. Department of Transportation</i> (1994) 29 Cal.App.4th 1280, 1293.) The demurrer to the third cause of action is SUSTAINED without leave to amend. Motion to Strike Portions of Writ of Mandate Defendant's motion to strike is DENIED. Defendant moves to strike irrelevant matter and the prayer for attorney's fees from the petition. <u>Irrelevant Matter</u> Defendant argues paragraphs 38 through 47 of the Petition (constituting the sections titled "Prior Public Records Requests (Background)," "District Policies Confirm Electronic Communications Are District Records," and "District Practice of Routing Public Records Requests to Legal Counsel Resulting in Delay") are irrelevant matter not essential to any cause of action. (See Code Civ. Proc., §§ 431.10, subd. (b)(1), 436, subd. (a).) Defendant also argues the paragraphs serve only to manufacture the factual predicate for a <i>Gilroy</i> "ongoing dispute" that the Petition cannot otherwise establish. The court disagrees for the reasons stated in its ruling on Defendant's demurrer. <u>Attorney Fees</u> Defendant moves to strike the prayer for attorney fees on the grounds that Plaintiff is not entitled to recover attorney fees because he is a self-represented litigant.
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		Plaintiff concedes this point but argues he may recover fees incurred in consultations with a retained attorney. Plaintiff is correct. (See <i>Mix v. Tumanjan Development Corp.</i> (2002) 102 Cal.App.4th 1318, 1324.) Defendant is ORDERED to file an answer within 10 days. Clerk to give notice.
10	Wang vs. Mayenne Medical 30-2025-01532205-CU-MM-CJC	Demurrer to Complaint Defendants Mayenne Medical dba Skinspire Laser & Skin Clinic, Dai Xiaoxiao, Liang Ma, and Hyunseok Kim's demurrer to Plaintiffs Yisha Wang and Willie Hungyi Wei's complaint is OVERRULED. <u>First, third, and fourth causes of action for battery and breach of fiduciary duty</u> Redundancy of a cause of action is not grounds for sustaining a demurrer. (See <i>Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC</i> (2008) 162 Cal.App.4th 858, 889-890.) <u>Fifth cause of action for fraud</u> Plaintiffs sufficiently allege a cause of action for fraud. (Compl. ¶¶ 77-88.) Motion to Strike Complaint Defendants Mayenne Medical dba Skinspire Laser & Skin Clinic, Dai Xiaoxiao, Liang Ma, and Hyunseok Kim's motion to strike portions of Plaintiffs' complaint is GRANTED. Plaintiffs' allegations are directly related to the manner in which Defendants provided professional medical services. (See <i>Central Pathology Service Medical Clinic, Inc. v. Superior Court</i> (1992) 3 Cal.4th 181, 191-192.) As such, Plaintiffs were required to obtain an order from the Court allowing them to seek punitive damages pursuant to Code of Civil Procedure section 425.13. The Court ORDERS Defendants Mayenne Medical dba Skinspire Laser & Skin Clinic, Dai Xiaoxiao, Liang Ma, and Hyunseok Kim to file an answer within 10 days. Clerk to give notice.
11	Young vs. Ford Motor Company	Motion for Summary Adjudication